ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	97th Commission Meeting
DATE:	21 September 2022
TIME:	02:30 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISION
1.	**Present the ToR for Security Unit and update on the security measures- Major Gyeltshen & SS** *Based on the decision of the 92nd Commission Meeting, Major presented the ToR of Security Unit and Security Personnel (**attached as Annexure 1**).* *The update on security measures was done as follows:* • *Cutting of tree branches around the P/ling office;* • *Alignment of CCTV;* • *Studied the Door Frame Metal Detector (DFMD) and the hand-held metal detector procured by RBP and recommended to Tender Committee. Based on their recommendation, issued supply order for the hand-held metal detectors and two DFMD, one for HQ and one at P/ling Office building. As for hand cuff, due to the requirement of few numbers and since the suppliers only take bulk order, recommended Commission to talk with Bangkok Embassy for procurement;* • *Biometric installation to be completed by mid of October 2022.* *Moving forward, Major resubmitted the need to recruit security personnel at Phuentsholing especially with the border opening on 23 September. Towards this, looking at the budget constrain, as an interim measure, suggested to talk with Desuung Office to deploy Desuups as*	**Commission partially endorsed the ToR and directed to share with management for their inputs. In the ToR to include a point on the Security Unit and Personnel to give training like self-defense and timely cautionary/reminder to the ACC staff.** **As for point 5 & 6 *(Pay and Allowances (of security officer on deputation & Capacity building)*, the Commission endorsed all points. However, providing of dedicated pool vehicle is contingent on the availability of vehicle. As for mapping of the Security Personnel, it to be put under Secretariate Services as per the restructuring proposal.** **Directed SS Head to follow up with RBP if the Major is sent on deputation to the ACC or if sent on assignment just to establish Security Unit.** **Directed Major and SS Head to talk with Desuung Office on the possibility to send Desuups as security personnel.** **Expediate the training of newly recruited on self-defense during the mandatory training.** **Each team to be given handheld metal detector.** **Commissioner Jamtsho to talk with Ambassador at Thailand for procurement of hand cuffs. And with DNP on the van**

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	security personnel.	**for pick and drop of clients.**
2.	**Update on the budget for Regional Offices- AFS** *AFS apprised on the proposed vs. approved budget for Regional Offices, Status of CD account balance and issues and recommendations (**attached as Annexure 2**)*	**<u>1.Rent for regional offices</u>** **Commission to see shifting of the Regional Offices to vacant spaces of other Government agencies given that no budget has been approved for rent payment.** **<u>2. Transfer benefits of staff transferred to Bumthang and Trashigang & 3. Transfer without transfer order</u>** **As for the transfer grant, as recommended, Commissioner-charge to discuss with Focal Commissioner at RCSC and release the payment for all staff at once.** **<u>4. Operational & Management budget for Phuntsholing Field office</u>** **Commissioner-incharge to talk with RCSC on approval of Phuntsholing Offive.** **<u>5. Insufficient travel budget under DoI</u>** **As recommended, to centralise the travel budget under DoI.** **Given the need to observe austerity measures, henceforth, during meeting, only black tea/coffee to be served. And to cultivate the culture of self-serve, teas to be kept in the meeting room. All heads to minimize catering during meetings.**
3.	**Way forward on the transit camps – RO** *The Heads of the Regional Offices apprised to Commissioner-in charge to surrender the transit camp from end of September. While 60% of the furniture will be utilized in the office, remaining furniture like bed, mattress, etc were suggested to either let the staff use after putting requisition form or sell it based on the market rate.*	**The Commission directed SS Head to looks at the delegation of authority of Head of Agency on selling the item. As for use by the staff, the Commission noted it is not advisable.**
4.	**Discuss on the research on justice services- LD, PPD & EAD, DoPE** *The ACC on 20 September received a letter from BTI on their intent to carry out a survey to assess citizens' perception and experiences of public services provided by judicial institutions, namely Royal Court of Justice, ACC, Royal Bhutan Police, Office of the Attorney General, Bhutan National*	**While noting the suggestions, the Commission at this point decided not to appoint a focal person but rather ask BTI for a presentation to know their objective and purpose and ensure there is no unnecessary duplication of efforts. However, give our views on the**

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	Legal Institute, Bar Council of Bhutan, and Bhutan Alternate Dispute Resolution Centre. They requested to appoint a focal person and review the methodology and the questioners ***(attached as Annexure 3)****.* *Towards this, based on the assessment of the background paper, it was seen as a duplication of NIA since it is also going to access the services and also the same agencies. Nonetheless, BTI have listed all the services as per the mandate of an agency whereas NIA is limited to only particular service.* *Similarly, doubt on how they are going to access the experienced part was raised given that as per their methodology, they are going for random sampling unlike NIA which interviews individuals who have actually availed the services.* *More specifically, since ACC Prevention Tools are target oriented, revision of the questioner to just include generic tools were suggested.* *In general, an external agency like BTI assessing the service delivery of justice institutions was seen as a good initiative.*	**methodology and the questioner.**
5.	**Regular update on HR- HRS** *HRO presented an update of the decisions of the 71st HRC and on decision of the HRC to take no further action on the disciplinary issue.* *Proposed to conduct the induction program for the new recruits proposed from 26-28 September.*	**Commission noted the recommendation of the HRC on the disciplinary issues and as confessed by the individual, directed the Chair of HRC to record in writing the verbal submission made with regard to the official's remark that the nature of job of the individual entails visiting such joints as well as engaging with people of all walks of life.** **Commission approved the proposed dates for induction.** **As for placement of new recruits to DoI, as recommended by Commissioner-incharge and DoI Director, as and when required, the new recruits will be attached with senior IO and given the assignment.**
6.	**Update on the Model Code of Conduct-LD** *The third draft of model public service*	**Commission gave specific comments on the draft and directed to share the revised draft to Commission for their final review.**

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	code of conduct was presented (attached as Annexure 4).	**The Commission iterated their priority to roll out the Model Code of Conduct before the launch of IVS.**
7.	Others: *Submission of elementization of corruption offences*	**Directed to wait for input from OAG and then go ahead for submission.**



Commissioner



Commissioner



Chairperson

eversign

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File Name	97th Com. Mtg_Minutes.pdf
Document ID	7bd1bb9b86a44454a9209e1c0ffc4296
Fingerprint	bb8fcafd94a00d6b1770e6d98bea92ba
Status	Completed

Document History

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Approved budget for Regional Offices
FY 2022-23

21.9.2022

Presentation Outline



1. **Proposed Vs. approved budget for Regional offices**
2. **Status of CD account balance**
3. **Issues and recommendations**

Proposed Vs approved budget for Regional offices

Phuntsholing

Activity	**Proposed**	**Approved**
Utilities -Telephones, Telex, Fax, E-mail, Internet	0.144	0.000
Utilities -Telegram, Wireless Transmission, Postage	0.050	0.000
Utilities - Electricity, Water, Sewerage	0.360	0.000
Sub-total	**0.554**	**0.000**

Bumthang

Activity	Proposed	Approved
Travel - In country	0.500	0.500
Utilities -Telephones, Telex, Fax, E-mail, Internet	0.198	0.048
Utilities -Telegram, Wireless Transmission, Postage	0.005	0.005
Rental of Properties Building	0.140	0.000
S & M - Office Supplies, Printing, Publications	0.050	0.050
Op. Exp. - In country Meetings and Celebrations	0.050	0.000
Utilities - Electricity, Water, Sewerage	0.060	0.090
Hospitality & Entertainment	0.030	0.000
Transfer benefits	0.327	0.160
Sub-total	**1.03**	**0.853**

Trashigang

Activity	**Proposed**	**Approved**
Travel - In country	0.500	0.500
Utilities -Telephones, Telex, Fax, E-mail, Internet	0.198	0.048
Utilities -Telegram, Wireless Transmission, Postage	0.005	0.005
Rental of Properties Building	0.245	0.000
S & M - Office Supplies, Printing, Publications	0.050	0.050
Op. Exp. - In country Meetings and Celebrations	0.050	0.000
Utilities - Electricity, Water, Sewerage	0.060	0.090
Hospitality & Entertainment	0.030	0.000
Transfer benefits	0.420	0.233
Sub-total	**1.558**	**0.926**

Issues & recommendations

1. Status of CD account as of date;

- Fund balance as of date: Nu. 110,483.66
- Payment for September: Nu. 45,440
- Balance : Nu. 65043.66
- Collections (approx.) : Nu. 25,000

Hence , the CD account balance is sufficient to make payments till November 2022 if the transit camps are surrendered by 30.9.2022

Issues	Recommendations
1.Rent for regional offices Section 8(b) of the budget appropriation act states "***No hiring of private building for office space and new establishment***" Hence, Rental budget for Regional Offices are not approved	➢ Explore office space in government buildings; OR ➢ Write back to MoF

Issues & recommendations

2. Transfer benefits of staff transferred to Bumthang and Trashigang Section 8(d) of the budget appropriation act states that "***Transfer of Civil Servants shall be without transfer benefits***" Hence, only travel allowance and transportation charges are approved for staff transferred to Bumthang and Trashigang ▪ Total entitlement: Nu. 747,000 ▪ Approved : Nu. 393,422 ▪ Not approved : Nu. 353,578	➢ Release the payment as recommended by MoF
3. Transfer without transfer order Five employees were transferred to Bumthang/Trashigang without transfer orders	➢ To release the benefits for those five employees after issuance of transfer order

Issues & recommendations

Issues	Recommendations
4. Operational & Management budget for Phuntsholing Field office Current budget for Phuntsholing field office is not approved by MoF	➢ To revisit the spending of Phuntsholing Field office and meet the expenses from the CD account; OR ➢ To write back to MoF mentioning the recent audit observation and the likely cost implications due to travel expenses
5. Insufficient travel budget under DoI Travel budget for Regional offices are approved under the name of Regional Offices.	➢ Centralise the travel budget since 62.05 % of the travel budget under DoI has been spent by regional offices (Nu. 1.086m has been spent by regional offices from the approved budget of Nu. 1.750m)
6. **Mapping of Security Officer in eDATS**	

Thank You

Terms of reference for the security unit and the security officer

1. Background: Security threats to the facilities, official records, information system and the employees of the ACC have made it necessary to establish a security unit that will carry out all the security related tasks of the commission. With the establishment of the security unit, it is inevitable for the unit to have a clear terms of reference(ToR) that will enable the unit to function in an organized, systematic and professional manner.

2. Scope: This ToR shall be applicable to all the security personnel and the employees of the commission. It may be altered from time to time by the commission upon the recommendation of the security unit.

3. Roles and responsibilities of the security unit:

a. The security unit shall be headed by an Officer who is on deputation from a foreign security agency/a security officer recruited by the commission.
b. The unit shall be established under the Secretariat Services. The Secretariat shall look after matters related to administration and human resources of the security.
c. The unit shall function under the guidance and supervision of the commission.
d. The unit shall look after the security of the offices of the commission.
e. Provide arrest and escort services wherever deemed necessary.
f. Provide security to the search team during search operations.
g. Attend to all emergencies and coordinate with the relevant agencies to handle the situation.
h. Provide security advices and assistance to the commission whenever required.
i. Monitor the interrogation and complaint receiving processes whenever required or sought by the concerned official.
j. Liaise with relevant departments and agencies to provide security related trainings and refresher courses to the employees of the commission.

4. Roles and responsibilities of the security officer:

a. A senior officer from a foreign security agency on deputation or a security officer recruited by the commission shall be in charge of the security unit.
b. Shall look after the command and control of the security personnel of the commission whether private or recruited by the commission.
c. Shall ensure that all security personnel are aware of their job responsibilities.

d. Shall coordinate with the concerned departments for arrest and escort of the suspects.
e. Shall ensure that escorts are being provided on time and in escort vans with adequate security personnel.
f. Must attend to all emergency situations and carryout necessary coordination and liaising with relevant stake holders.
g. Must keep the commission apprised about any serious or sensitive security matters.
h. Must ensure that all security equipment and systems are up to date and functional.
i. Must ensure timely intervention in any security related matters or incidences.
j. Must ensure that the security personnel maintain confidentiality of the case related information.

5. Pay and Allowances (of security officer on deputation)

a. Salary of the security officer who is on deputation to be borne by the parent organization as per the existing rules and regulations.
b. All travel allowances, mobile vouchers and professional allowances to be borne by the commission.
c. Dedicated pool vehicle to be provided by the commission.
d. All forms of leave to be facilitated by the commission and accordingly update the parent organization.

6. Capacity building:

a. The commission shall facilitate and provide all forms of capacity building activities to the security personnel

including the security officer on deputation.

b. Security personnel receiving training shall submit a training report to the commission through the secretariat as

per the existing procedure.

Major Gyeltshen

RBP.

MODEL PUBLIC SERVICE CODE OF CONDUCT

Introductory Statement

The Parliament, having adopted the Anti-Corruption Act of Bhutan 2011, under section 35, requires the Anti-Corruption Commission to develop Model Public Service Code of Conduct for adoption and implementation by the public agencies;

Acknowledging that corruption presents a serious threat to national security and sovereignty, values of democracy, equity and justice, rule of law, and sustainable socio-economic development;

Considering that there is need for appropriate legal and material environment to effectively and efficiently deliver public services;

Convinced that ethics and morality form the innate values essential in preventing corruption;

Requires a Public Agency, adopt agency-specific Code of Conduct for a public servant based on this Model Public Service Code of Conduct (hereafter referred to as Model Code) as provided hereunder:

Objectives of the Model Code

(1) The purpose of this Model Code is to:
   (a) spell out the standards of integrity and conduct to be complied with by a public servant;
   (b) help them meet those standards; and
   (c) inform the public of the conduct and what is entitled to expect of public servant.

Model Code to be applied as employment terms and conditions

(2) This Model Code shall apply to all public servants.

(3) This Model Code shall be considered as a part of the employment terms and conditions of a public servant and its breach shall result in disciplinary or criminal sanction as appropriate.

Responsibility for implementation of this Model Code

(4) The Head or senior management in an agency shall be responsible for implementing this Model Code by developing their own code of conduct, based on this Model Code, tailored to the functions and responsibilities they are expected to carry out and to suit their particular requirements and circumstances.

(5) An Agency shall complement this Model Code, with elaborate policies, rules, training, and procedures including dissemination to their staff.

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Rule of Law

(6) A Public Servant shall perform the official duty in accordance with the law of the land.

Serving the Public Interest

(7) A Public Servant shall demonstrate the highest standards of professional competence, fairness, integrity, and selflessness; and uphold the public interest at all times to maintain, sustain, and strengthen the public trust and confidence in the public service.

Loyalty

(9) A Public Servant shall be loyal and faithful to the *Tsa-wa-sum.*

Professionalism

(10) A Public Servant shall:

(i) demonstrate the highest degree of competence, skill, knowledge, decisiveness, self-leadership, resilience, firmness, trustworthiness, reliability, resolve, determination, grit, fortitude, perseverance, creativity, adroitness, and aptitude as required by his or her profession and adhere to the professional codes of conduct;

(ii) be strategic, dynamic, steadfast, innovative, and astute; and strive to achieve the intended results based on predetermined targets and other performance standards set for the public service delivery;

(iii) endeavour to optimally use resources including time in achieving the objective, target, or task of an organization or public office; and

(iv) be mindful, careful, conscientious, thorough, and assiduous in carrying out the official duties.

Fairness

(11) A Public Servant shall:

(i) be fair and impartial in the performance of their functions and in dealing with the public;

(ii) at no time accord any undue preferential treatment to any group or individual or discriminate based on gender, race, religion, disability, region, or ethnic background; and

(iii) not act arbitrarily and/or prejudicially against the right of their client and staff.

Transparency

(12) A Public Servant shall be transparent in their decision and action unless otherwise required to maintain confidentiality and secrecy.

Discipline

(13) A Public Servant shall be courteous and behave in conformity with the *Driglam Namzhag*,

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law, standard and the respective code of conduct for public service.

Conduct of private affairs

(14) A Public Servant, even in their conduct of private affairs, shall comport himself or herself in a manner expected and becoming of a public servant to sustain public trust and confidence.

Conflict of interest

(15) A Public servant shall not allow official position to conflict with or advance his or her private or personal interest or that of his or her family, relative, or associate, in any way.

(16) A Public Servant shall not take part or influence any decision or decision-making proceeding or process of a public agency when he or she, his or her family, relative, or associate has a private or personal interest.

(17) A Public Servant shall:

(i) declare any actual, perceived, or potential conflict of interest; and

(ii) manage the conflict of interest in accordance with the Model Guideline on Managing Conflicts of Interest in the Public Service in vogue.

Outside interests

(18) Notwithstanding the requirement under law, a Public Servant shall not engage in any activity or transaction, acquire any position or function whether paid or unpaid, or have any pecuniary or non-pecuniary, commercial, or other comparable interest that is incompatible with their office, function, and duty or the discharge thereof or detract from the proper performance of his or her official duty.

(19) A Public Servant shall comply and declare membership of, or association with, organization outside his or her official position.

Declaration of assets and liabilities

(20) A Public Servant shall, as required by law, comply with requirement to declare his or her personal asset, income, and liability, as well as, those of his or her spouses and/or dependant.

Acceptance of gifts and hospitality

(21) A Public Servant shall not, directly or indirectly, solicit or accept gift, favor, hospitality, or other benefit of any kind either for himself or herself, or his or her family, relative and friend, or person or organization with which he or she has or had business or relation except as otherwise permitted by law.

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(22) A Public Servant shall report any offer, promise, or giving of undue advantage to his or her immediate supervisor or directly to the Anti-Corruption Commission of Bhutan.

(23) A Public Servant shall declare any receipt of gift or hospitality in accordance with the Gift Rule in vogue.

Susceptibility to influence by others

(24) A Public Servant shall not permit himself or herself to be put, or seen to be put, in a position of obligation to return a favor to any person or body.

(25) A Public Servant shall not make his or her conduct whether in their official capacity or in his or her private life susceptible to the improper influence of other.

Abuse of official position

(26) A Public Servant shall not take advantage of his or her official position for the improper advancement of his or her personal, pecuniary, or non-pecuniary interest or that of his or her family, relative, and associate.

(27) A Public Servant shall not seek to influence any person or body, including other public servants, for his or her benefit or benefit of his or her family, relative, or associate, by using his or her official position or by offering them personal advantage.

Public and official resources

(28) A Public Servant shall at all times ensure that the staff, public property, facility, service, and financial resource with which they are entrusted to managed are used judiciously for intended or official purpose.

(29) The patent right and copy right for any invention, discovery, innovation or intellectual work of a public servant that has resulted from the employment in, use of public resource or supervision of public agency shall be vested with a relevant public agency.

Disclosure of information

(30) A Public Servant shall maintain confidentiality and secrecy of any matter, document, report, and other information relating to the official function that become known to him or her or come in his or her possession or under their control.

(31) A Public Servant shall:

(i) take appropriate step to ensure the security and confidentiality of information or document for which he or she is responsible or of which he or she become aware or come to his or her possession and use only for the intended purpose; and

(ii) not access to information or document that is not appropriate for him or her to do so.

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(32) A Public Servant shall not disclose official information, whether confidential or not, unless authorized to do so.

Integrity Vetting

(33) A Public Servant responsible for the selection, recruitment, promotion, nomination, appointment, and election of a person in the public office and award of a public contract or entering into a public contractual relationship shall ensure integrity vetting in accordance with the Integrity Vetting Rules of the Anti-Corruption Commission of Bhutan.

Political engagement

(34) The members of National Council and Local Governments; and public servants in non-elective offices shall remain apolitical.

(35) Elected Public Servant shall ensure that vested political activity do not influence or conflict with his or her official duty and shall comply with any lawful restriction on political activity.

Post-public service restrictions

(36) A Public Servant shall:

(i) not take advantage of his or her official position to obtain opportunity for future employment; and

(ii) forthwith disclose to his or her supervisor, management, or relevant authority any offer of employment received.

Risk assessment of posts or activities vulnerable to corruption

(37) Public agency shall carry out corruption risk assessment of post or activity, and put in preventive and mitigating measure.

Protection of the public servant's privacy

(38) Public agency shall take all necessary steps to ensure that the public servant's privacy is respected and declaration required by this Model Code be kept confidential unless otherwise provided for by law.

Procedures for raising and handling complaints

(39) A Public Servant who believes he or she is being required to act in an unlawful, improper, or unethical way shall file a complaint in accordance with Grievance Redressal Mechanism instituted by the respective agency as per the Code of Conduct.

(40) A Public Servant shall file a complaint with the relevant authority if he or she become aware of a breach of the code of conduct by other public servant, including pressure or undue influence applied to him or her by supervisor, colleague or by other.

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(41) Public agency shall ensure that complaint or information contained therein is treated confidentially and the complainant is not victimized.

(42) Public agency shall ensure the due process of law and protect the right of a person while conducting administrative inquiry on a complaint.

(43) Public agency shall impose an appropriate disciplinary sanction for a breach of the code of conduct as established by the administrative inquiry.

Disciplinary Sanctions

(44) A Public Servant shall be liable for major or minor disciplinary sanction for the breach of the code of conduct which shall include but not limited to the following:

(i) Major disciplinary sanctions

(a) Termination; or
(b) Compulsory retirement.

(ii) Minor disciplinary sanction

(a) Suspension;
(b) Withholding of promotion;
(c) Demotion;
(d) Re-assignment of duties;
(e) Reduction in salary;
(f) Deductions from salary, by way of fine;
(g) A reprimand; or
(h) Any other sanction.

(45) The foregoing disciplinary sanctions shall not preclude the application of any civil or criminal sanctions if the breach of the code of conduct constitute a criminal or statutory offense and is punishable under any other relevant law.

Accountability

(46) A Public Servant holds the office in public trust and shall be held personally accountable and liable for any unlawful or inappropriate action, inaction or decision.

Supervisory accountability

(47) Head of an agency shall be accountable for failure to develop, adopt and implement the agency specific code of conduct in line with the policies and purposes of their agency based on this Model Code.

Rules of construction

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(48) In this Model Code, unless the context indicates otherwise, singular shall include plural and masculine shall include feminine and vice-versa.

(49) The term used in this Model Code shall bear same meaning as in the Anti-Corruption Act of Bhutan.

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